

Council Meeting
February 13, 2019
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The Claremont City Council held a meeting on Wednesday, February 13, 2019, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Jeremy Zullo
At-Large Councilor Abigail Kier
At-Large Councilor Nicholas Koloski
Ward II Councilor Scott Pope

Also present:

Mary Walter, Acting City Manager

AGENDA CHANGES

Mayor Lovett said that item 10 A. Accept and Expend \$15,000 from Mascoma Bank for Library A/C – Public Hearing would be rescheduled to February 27. She asked the Council to suspend Council Rules in order to add Collective Bargaining as New Business 10 A.

A motion was made by Mr. Pope and seconded by Ms. Kier to suspend Council Rules.

Roll call vote: motion carried 9-0.

REPORT OF THE SECRETARY

A motion was made by Mr. Koloski and seconded by Mr. O’Hearne to accept the minutes of the January 2, 2019, City Council meeting.

Voice vote: motion carried 9-0.

A motion was made by Mr. Damren and seconded by Ms. Kier to accept the minutes of the January 9, 2019, City Council meeting as amended.

Mayor Lovett said on page 1, the date reads January 8, and it should be January 9.

Voice vote: motion carried 9-0.

A motion was made by Mr. Damren and seconded by Mr. Stone to accept the minutes of the January 23, 2019, City Council meeting as amended.

Ms. Kier said the minutes reflect she was at the meeting, but she was absent.

Voice vote: motion carried 8-0, with 1 abstain (Ms. Kier).

MAYOR'S NOTES

Recognition of Peter Wright's Contributions to Claremont

Mayor Lovett presented Peter Wright, Valley Regional Hospital (VRH) President and CEO, a Certificate of Appreciation for his work at VRH. She said when Mr. Wright came on board, his focus was to increase visibility of the hospital, which he did with its participation in the Alumni Parade, fundraising, and competitions such as Reach the Peak. He also resurrected the volunteer program. Mayor Lovett served on the hospital board.

Mr. Wright said it was a labor of love. The hospital is important in this community and he is glad to have been a part of the team that brought the hospital back.

Mr. Pope thanked Police Officer Wilmot and Police Chief Chase for the training done in the school regarding citizen response to an active shooter.

CITY MANAGER'S REPORT

Ms. Walter shared the following notes.

CM Newsworthy Notes

- You will be seeing activity on Sugar River Drive – Cone Valve (dates back from 2005 and 2007 100 and 500 year floods). In 2011 was Hurricane Irene as well. Each of these events created a little more erosion. In 2015 we hired Morello Construction to repair the bank erosion closest to the cone valve / pump station. Cost was \$131,300 with all but \$300 funded by FEMA. This only fixed a small section of erosion (I believe it was 100' of 500 total).
 - January 12, 2018 there was additional severe bank erosion from Ice Jams and flooding but no FEMA funding however we did cost estimation for the 2019 budget. This went out to bid and will commence this month (I believe this fixes the next 200' of the area we've been concerned with.
- We have an emergency 2/12 Sullivan/Twistback – Sewer Manhole in river exposed on 3 sides. Being evaluated by engineers who are in talks with wetlands bureau as we speak.
- Governor's request for projects (emailed back the evening of 2/7/19 - \$242,000 in 3 project requests.

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- 139 Main Street – we continue with the owner of 145-47 Main to get his portion of the building shored up so that a safe demolition can be done on 139 Main.
- Audits of the city's books came in late last week and you have them in front of you tonight. Once again, the city received a clean audit. However, last year was the first year in at least 10 years that we have not had to have a single audit. That means that we did not get enough in grant money to trigger one (that trigger is \$750,000). Please look this over in the next month as I have asked the auditors to be here for the March 13th meeting.
- We've been notified that a flyer will be distributed by American Water Resources. This flyer is not affiliated or endorsed by the city or the water department and customers should due their due diligence if purchasing their services.
- The Boston office of the EPA has asked Claremont to be a PILOT test community for an EPA program called Protect your TAP- a 10-minute lead test.

She said the snow blower has broken down. It may take 3 weeks to repair. The City is looking at options in order to remove the snowbanks. Three Public Works workers will retire at the end of the year and they have a total of about 90 years of experience.

Mr. Koloski asked about the notice from the Governor regarding surplus funds and why the Council was not asked to weigh in on it. Regarding the Police Department report and dispatch regionalization, he wants to make sure the Police have all the information needed. Also, in that report the Chief expressed concern whether or not the equipment can handle adding more communities. Mr. Koloski would like to hear more.

Regarding the Governor's surplus funds, Mayor Lovett said that she had received a phone call from the Governor and then she contacted Mr. MacLean. Mr. MacLean met with Department Heads and the top three projects were sent to the Governor's point of contact. Mr. Koloski originally would have liked the Council to weigh in, but now understands the time constraints and why the letter was from the City Manager on behalf of the Mayor. Mr. O'Hearne said he thought the letter should have been from the Council and the Council should have been able to weigh in.

Ms. Walter said the City Manager knew the Governor had called the Mayor directly and that's why the letter was sent on behalf of the Mayor.

APPOINTMENT TO BOARDS AND COMMITTEES

Parks and Recreation Commission

A motion was made by Mr. Pope and seconded by Mr. Damren to appoint Robert Pickul to seat 5 – At Large of the Parks and Recreation Commission.

Voice vote: motion carried 9-0.

Upper Valley Lake Sunapee Regional Planning Commission

A motion was made by Mr. Koloski and seconded by Mr. Zullo to appoint Richard Wahrlich to seat 3 of the Upper Valley Lake Sunapee Regional Planning Commission.

Regarding the Planning Board minutes that accompanied Mr. Wahrlich's application, Mr. O'Hearne questioned Mr. Wahrlich's voting for himself.

Mr. Damren said he is not aware of any regulation prohibiting voting for one's self.

After a brief discussion, Mayor Lovett said this could be a part of the discussion regarding Council Rules.

Voice vote: motion carried 9-0.

Tax Increment Finance District Advisory Board – Downtown

A motion was made by Ms. Kier and seconded by Mr. Stone to appoint Martha Maki to seat 3 of the Tax Increment Finance District Advisory Board – Downtown.

Voice vote: motion carried 9-0.

A motion was made by Mr. Koloski and seconded by Mr. Stone to appoint Derek Ferland to seat 4 of the Tax Increment Finance District Advisory Board – Downtown.

Voice vote: motion carried 9-0.

A motion was made by Mr. O'Hearne and seconded by Mr. Stone to appoint Robert Porter to seat 5 of the Tax Increment Finance District Advisory Board – Downtown.

Voice vote: motion carried 9-0.

Zoning Board of Adjustment

An application had been submitted to appoint Michael Lemieux to seat A3 of the Zoning Board of Adjustment.

Mayor Lovett said it needs to be sent back because there may be a problem with its completeness. What's missing could be incomplete or incorrect. This needs to be discussed with Mr. LeMieux.

Mr. Stone asked how often Councilors receive resignations from boards.

Nancy Merrill, Planning and Development Director, said that deForest requests resignations in writing. Ms. Merrill said copies can be sent to the Council.

Mayor Lovett said this would come back at the February 27th or the March 13th meeting.

CITIZEN'S FORUM

Phil Montenegro, Ward 1, spoke of a letter to the editor of the Eagle Times regarding a citizen who was harassed for expressing his constitutional right of free speech, that it was an inappropriate response from a Councilor. The threat by social media is harmful. By not acknowledging the threats as problematic, we make a choice to validate such actions. The Council has a moral obligation to officially apologize to the citizen.

Ernest Montenegro, Ward 1, said he feels the City needs as much a positive face as possible. If the issue with Mr. Killay and his family is not dealt with, then we are looking at a real erosion of public civility. He read from the City's Code of Conduct.

David Putnam, Ward 2, recommended the Council make a motion to affirm its responsibility and commitment to follow exactly the Charter and rules of procedure. This would help do some healing in the community. Some people are concerned about how members of the Council are conducting themselves. He drafted a motion which states "I wish to make a motion that, we, the Claremont City Council, affirm our responsibility and commitment to following exactly Claremont's City Charter and rules of procedure."

Meg Hurley, Ward 2, asked what the Council is doing about the mess the Council has created: the firing of a productive City Manager; Councilor cyberbullying, and the fact that he is still a Councilor; Mayor and other Councilors' interference in business that does not concern them in the context of their service on the Council and the violation of the Charter, interference that includes holding secret meetings with the owner of the Topstone building and meddling in Police Officer Kibbe's case. She said it seems some Councilors need job training and then need to report back to the citizens what they've learned. She urged the Council to rehire Mr. McNutt.

OLD BUSINESS

Ordinance 564 - Renewable Energy – First Reading

The purpose of this proposed change is to adopt property tax exemptions for Solar, Wind-Powered and Woodheating Energy Systems in accordance with state law.

Enactment of this Ordinance will allow a property tax exemption for certain qualifying renewable energy systems up to the assessed value of the system. This ordinance has been requested by the City Council and reviewed by the Energy Advisory Committee.

Ms. Merrill said at the last meeting Councilors suggested making an amendment to the proposed ordinance. Legal counsel said this needed to come back as substitute ordinance. It is exactly as read into the minutes last time. This is procedural.

A motion was made by Mr. Pope and seconded by Ms. Kier to adopt Ordinance 564 - Renewable Energy.

Mr. Pope read the explanation of proposed action and the ordinance into the record.

Voice vote: motion carried 9-0.

City Manager Search Update

Mr. Damren said that Mayor Lovett and he used the last RFQ (Request for Qualifications) for seeking a search firm for services. He rewrote a section in accordance with Council requests. The RFQ was sent to responders for the last RFQ. The due date is February 25 at noon.

Mr. Stone asked which firm did the background check on Mr. McNutt. Mr. Damren said MRI. Mr. Stone recommended not using them for the next background check. He said there were two documents that are available online that was not brought forth.

Ms. Kier asked what process will be used. Mayor Lovett said you usually wait to hear the suggestions from the firm that is selected.

The responses are to include using a search firm with sole responsibility and using a hybrid approach in which they provide the administrative functions of the search and the other part is done by the City.

There was a discussion about having residents be a part of the search committee. Mayor Lovett suggested waiting to hear from the selected company regarding its best practices.

Energy Policy Discussion

Mr. Pope said he had hoped for the Energy Advisory Committee (EAC) to meet on this, but last night's meeting was cancelled due to snow. He hopes to have this discussion at the EAC, because that is why the committee was created.

Mr. Damren recommended no action be taken until after the EAC has had its discussion.

Mayor Lovett included in the packet a resolution from the City of Concord to adopt a goal of 100% renewable energy for the City of Concord. She said if the Council were to adopt the resolution, then it would go to the EAC. She called this a nonbinding resolution.

RESOLUTION: ADOPTING A GOAL OF 100% RENEWABLE ENERGY FOR THE CITY OF CONCORD

The City of Concord resolves as follows:

WHEREAS, the City has demonstrated leadership on sustainability by implementing energy efficiency projects in municipal operations, saving costs for taxpayers and reducing the City's greenhouse gas (GHG) emissions; and

WHEREAS, it is in the City's best interest to continue reducing its GHG emissions to combat the threat of global climate change, and to make a community-wide transition to renewable energy and clean transportation to achieve that objective;

WHEREAS, renewable energy and clean transportation present an opportunity to create local jobs in emerging industries, stabilize energy costs, increase energy security, improve public health and reduce health care costs, and avoid climate change mitigation costs; and

WHEREAS, the U.S. Environmental Protection Agency defines renewable energy as resources that rely on fuel sources that restore themselves over short periods of time and do not diminish, including the sun, wind, moving water, organic plant and waste material (eligible biomass), and the earth's heat (geothermal).

NOW, THEREFORE, BE IT RESOLVED, by the City Council of the City of Concord that:

1. It is the goal of the City of Concord that 100% of electricity consumed in the City will come from renewable energy sources by 2030, 100% of thermal energy (heating and cooling) consumed in the City will come from renewable energy sources by 2050, and 100% of transportation used in the City will be clean transportation by 2050. This goal will apply to the entire Concord community, not just municipal government operations.
2. This goal is aspirational in nature and shall not be construed to either impose any mandate on the City or its residents or businesses.
3. The City Council directs the Concord Energy and Environment Committee (CEEC) to lead the preparation of a strategic plan to achieve this goal, working with the City administration and a Stakeholder Committee, with input from the broader Concord community.
4. The CEEC will present a draft strategic plan to the City Council for its review and approval within one year of the Council's adoption of this resolution. The strategic plan will be revised and updated from time to time.
5. The City Council anticipates that adoption and implementation of the goal will result in energy cost savings and other economic and societal benefits over time. The strategic plan will be prepared with the objective of achieving such savings and benefits.
6. This resolution shall take effect immediately upon approval.

Mr. Pope said he appreciated the resolution as a start. The EAC hasn't met a lot of times, but they have been working on this.

Rebecca MacKenzie, Ward 2 resident and Energy Advisory Committee member, said the Energy Chapter of the Master Plan is clear about the direction to move in. She is hoping for Claremont to be a leader in the state. She said five communities have committed to 100% renewable energy.

Mayor Lovett said she had suggested the Council review the Energy Chapter of the Master Plan. She reminded the Council that Claremont is a part of a municipal roundtable for energy. The City has taken it on as one of its priorities. The cost of energy is prohibitive for businesses coming/staying in the state. Costs to residents is high. Ms. Kier is in favor.

Mr. Koloski wants to make sure these are actionable items that can be attained.

After discussion, Mayor Lovett said at the last joint Council/School Board meeting, it was agreed that each entity would discuss this and then give an update at the April meeting. She said she hears the majority of the Council wants the EAC to weigh in. She said coming to a consensus by the end of March would be great.

Mayor Lovett said in the near future, she would like the Council to discuss RSA 53-F, Energy Efficiency and Clean Energy Districts.

NEW BUSINESS

Accept and Expend \$15,000 from Mascoma Bank for Library A/C – Public Hearing

Moved to February 27, 2019, agenda.

Collective Bargaining Update

A motion was made by Mr. Damren and seconded by Mr. Kier that the Council ratify and approve collective bargaining agreements between the City and the Public Works union and the City Clerical union that would allow for a one-time payment of \$1,000 per person to be pro-rated for any employees who are part-time employees. This is subject to ratification by both the Public Works union and Clerical workers union. Such agreement would expire June 30, 2019.

Chris Kilmer, Staff Representative from AFSCME, said Public Works union employees have already ratified this. He will work with the Clerical union to get it ratified.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes
Zullo - yes
Kier - yes
Koloski - yes
Pope - yes
Lovett - yes
Motion carried 9-0.

Transfer Funds for City Manager Search and Legal Expenses

A motion was made by Mr. Damren and seconded by Ms. Kier that the Claremont City Council, pursuant to Article III, Section 45 of the Claremont City Charter, hereby authorizes the City Manager or his designees to transfer the following sums of money between departments, such funds having been raised and appropriated in the 2019 City budget.

Transfer from:	01-421-992-0000	Encumbered Funds – Police	\$83,600
Transfer to:	01-417-201-0000	Legal	\$50,000
	01-411-202-0000	Consulting Services	\$33,600

Mr. O’Hearne asked if there are any more encumbered funds in the Police Department. Ms. Walter said this was money put in for a Police Department position that we were hoping to hire. They are still down three officers, so there will be money left in that budget. She will come back to the Council to encumber it.

Voice vote: motion carried 8-1, with Mr. Koloski voting no.

Resolution 2019-19 Proceeds from First Night Button Sales – Public Hearing

WHEREAS on December 31, 2018, the Claremont Parks & Recreation Department (the "Department"), in conjunction with the Claremont-Sugar River Rotary Club (the "Rotary Club"), co-sponsored First Night activities (the "Event") as a community celebration of the New Year; and

WHEREAS the Department collected \$290.00 from sale of First Night buttons, which was part of the Rotary Club's fundraising activities; and

WHEREAS the Department would like to now distribute these funds to the Rotary Club;

NOW THEREFORE, BE IT RESOLVED that the City Council hereby authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to withdraw the total amount of \$290.00 from the Parks & Recreation Revenue Account and to distribute the sum of \$290.00 to the Rotary Club; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

Mark Brislin, Parks and Recreation Director, thanked the Claremont – Sugar River Rotary Club and other businesses who helped to fund the First Night event. One of their fundraisers is to sell First Night buttons and they sold just shy of 300 buttons.

A motion was made by Ms. Kier and seconded by Mr. Koloski to adopt Resolution 2019-19 Proceeds from First Night Button Sales.

Ms. Kier read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

Lessard - yes

O’Hearne - yes

Stone - yes

Damren - yes

Zullo - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 9-0.

Resolution 2019-18 Congestion Mitigation & Air Quality Improvement Program – Public Hearing

WHEREAS the Council, by motion dated October 11, 2017, authorized application for the Congestion Mitigation Air Quality (CMAQ) grant funding to the NH Department of Transportation for Washington and Broad Street signal system optimization in an amount not to exceed \$1,102,600 (requiring a 20% City match) and;

WHEREAS said City matching funds were approved in the FY 2019 budget and;

WHEREAS said application was approved by Governor and Council on October 3, 2018, in the amount of \$652,600 with 80% of the funds coming from Federal Highways Funds (\$522,080) and the remaining funds coming from the city;

NOW THEREFORE BE IT RESOLVED that the City Council hereby raise and appropriate the sum of \$652,600 with \$552,080 to come from the NH Department of Transportation with the

remaining \$130,520 already in the current 2019 budget and to accept and expend said funds for their intended purpose and;

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

Ms. Walter said previously the Council had approved applying for this. This resolution is to raise and appropriate the money. It is already in the budget.

A motion was made by Mr. Damren and seconded by Mr. Koloski to adopt Resolution 2019-18 Congestion Mitigation & Air Quality Improvement Program.

Mr. Damren read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Zullo - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 9-0.

Ordinance 565 Establish Board of Assessors – First Reading

The purpose of this proposed change is to establish a Board of Assessors (BOA) appointed by the City Manager. This Board would review and comment upon property tax assessments as prepared by the City Assessor, who would sit as a nonvoting member on the Board of Assessors. The Board would evaluate and decide upon property tax abatement, credit, exemption and deferral applications, with the recommendation and advice of the City Assessor. The Board would also serve as an advisory board for the City Assessor and the City Council regarding the function of the assessing division. The reason for this amendment is to maintain and enhance the function of the Assessing Division, ensure the public is engaged in the abatement/assessment process, and to incorporate a variety of perspectives in the decision-making process.

Enactment of this Ordinance will revise Chapter 2, Administration, Article III, Section 2-262 by amending the duties of the City Assessor. It will also revise Chapter 2, Administration, Article II, by adding a new Division 9 – Board of Assessors, to establish the Board and define its powers

and duties. This change was requested by the City Council upon the recommendation of the Policy Committee.

Mayor Lovett said the Policy Committee met with legal counsel at its last meeting to review this. Members of the Policy Committee are Mayor Lovett, Ms. Kier, Mr. Stone, John Simonds, and Bonnie Miles. The Policy Committee is happy with the results and is bringing it to the Council for first reading.

Ms. Walter said her understanding is that the state statutes course is held in the spring and the fall; it is a 5-day course, during the week. This resolution states funding will be provided in the Assessing Division budget. She asked if this means that we are funding just the class or does this include travel. She asked what happens if they cannot attend the class within a year of appointment.

Mayor Lovett said when this was discussed, Interim Assessor Joe Lessard was at the meeting. She believes those concerns can be addressed in the rules of the BOA.

Ms. Walter asked if the board members would be allowed to waive being trained. The answer was no.

Mayor Lovett said it could be put in the rules and regulations what the options are.

Ms. Walter asked how many people to budget training for. Mayor Lovett said to budget for three people.

Ms. Walter asked if this was only for the class. The answer was yes.

Mr. Stone asked about changing the appointing authority from the City Manager to the Council.

Mayor Lovett said she's waiting for the timeline to put it on the November ballot.

There was a discussion about the BOA's authority.

Mayor Lovett read the Explanation of Proposed Action. The BOA will not perform day-to-day operations. They would review assessments. When it comes to appeals, that's where the BOA comes in. They would review decisions made by the department.

Steve Hamilton, Interim Assessor, said the Assessor makes recommendations and the BOA will make the ultimate decision. Mr. Stone said if the resident doesn't agree with the decision, they can go to the BTLA (Board of Tax & Land Appeals) or Superior Court.

Mr. Koloski was concerned through what mechanism the BOA would be contacted. Mayor Lovett said if the Council wants information, then it would be a request made by the Council, as a whole, to the BOA. Mr. Damren said that would be evidenced by a motion and vote. Mr.

Hamilton agreed with that. Mr. Koloski asked that this information be placed in the minutes in detail.

Mr. Hamilton said the state statute class is a two-week process. It comes with an exam. He suggested having two years to successfully complete those classes.

Ms. Walter said logistically, it would be hard to complete in one year, because a lot of people work.

Ms. Kier said the wording states to take the course, but not pass the course.

Mr. Stone agreed that amending it to two years was a good idea.

Mr. Pope said he would like it to state they have to pass the course.

Mr. Hamilton suggested to make the sentence read “Regular and alternate members shall successfully complete and pass the NH Dept. of Revenue Administration State Statute course Parts 1 and 2 within the first two years of service on the board...” Councilors agreed.

Mr. Hamilton asked for two other changes. Section 2-143. Powers and duties. 4. Change the last two words from city assessor to city assessing division. Section 2-143 (5) He suggested, “Advise the city assessor on the practices and policies” instead of problems and policies.

Ms. Walter asked about funding. The majority of the Councilors agreed that the funding should be for the class only.

There was a discussion about when this ordinance should take effect, whether it should be immediately or have a phase-in period.

Mr. Hamilton said overall he agrees completely that having a Board of Assessors would be a benefit to the Assessor. Regarding the knowledge and experience of the people on the board, timing favors deploying this now. This is the abatement season now. This board won’t be constituted and making decisions for at least a few months. The state statute class part 1 is given in the spring and part 2 is given in the fall; they don’t have to be taken in a structured order. It will be incumbent upon the Assessor to help the board especially in the first few years. Professional assessors are used to helping people get the information.

Mayor Lovett requested getting this back from legal counsel in time for the February 27th meeting.

Diversity/Inclusion Policy Discussion

Sample resolution.

Resolution #9-2017

Resolution Affirming Portsmouth As A "WELCOMING COMMUNITY"

A RESOLUTION affirming the City of Portsmouth as a Welcoming Community that promotes policies and programs to foster inclusion for all, and serves, accepts, and respects its residents and visitors regardless of their immigration or refugee status, economic level, race, color, religion, national origin, age, sex, sexual orientation or LGBTQ status, gender identity, or disability. In our community we cherish our differences as human beings while we celebrate our commonality as friends.

WHEREAS, Portsmouth, New Hampshire, one of the earliest European settlements in the "New World," which had been home to native Americans who treasured and cared for the natural wildlife, shores, meadows, hills, rivers and waters created hereon; and

WHEREAS, as more people came to this continent and to the shores of Strawberry Banke to make a community that would become the "City of the Open Door," a motto that encapsulates our commitment of welcoming all; and

WHEREAS, with the exception of indigenous people, we are a nation of immigrants, and the City of Portsmouth is an early and valued part of that nation; and

WHEREAS we recognize that our strength comes from a diversity that includes all of us, and no artificial borders or human-made walls or lines drawn on a map can ever be permanent barriers to people who want to meet or be with one another; and

WHEREAS it is the diversity of our population of those who call Portsmouth "home" now, and who will do so in future centuries which makes our community strong, sustainable, always growing, ever vibrant, challenging and exciting;

AND WHEREAS, City employees serve all residents, make city services accessible to all, and maintain ongoing services including:

- 1.) The Portsmouth Police Department's Standard Operating Procedure of not initiating police actions with the primary objective of discovering the immigration status of a person nor stopping or detaining a person solely to investigate immigration status;
- 2.) The Portsmouth Police Department's Standard Operating Procedure of releasing persons issued a summons or citation regardless of immigration status unless the person was arrested for a felony or misdemeanor involving violence or poses a threat to public safety;
- 3.) The Portsmouth Police Department's Standard Operating Procedure of not asking about immigration status of victims or witnesses to crimes or juveniles who are not charged with a felony level crime;
- 4.) The Portsmouth School Department's investments in efforts to provide language support and instruction to students whose first language is not English to enable them to succeed in the Portsmouth school system; and
- 5.) The encouragement of the Portsmouth community health and social service agencies to provide supports required by newcomer populations, including translation and referral services required to access services.

NOW THEREFORE, BE IT RESOLVED that Dr. Martin Luther King, Jr. offered the world great wisdom when he said, "*We must learn to live together as brothers, or perish together as fools.*" Portsmouth will always be a Welcoming Community, and our people endeavor to continue to create a safe environment for all.

BE IT FURTHER RESOLVED that we encourage all of our residents and visitors, business leaders and civic groups, community institutions and those at all levels of our government to join in an effort to apply policies and practices that promote fairness, inclusion, and equality. We will always have a government that treats our residents and visitors with the highest standards of fairness,

equality, ethics, courtesy, and caring.

AND BE IT ADDITIONALLY RESOLVED that every person matters, and as a community we will stand on the side of all persons who feel scared, bullied, or alone in our community. We recognize that there is nothing more important on this Earth than the way we treat one another; when we treat others with acceptance and friendship, we can accomplish great things, we can end wars and poverty, and we can live more purposeful lives.

IT IS DECLARED by the Portsmouth City Council that the City of Portsmouth of Rockingham County in the State of New Hampshire, United States of America, is a Welcoming Community that will fight and oppose discrimination, hatred, injustice and prejudice in all forms, and will continue to stand to value all of the peoples of this planet. We encourage freedom of thought, freedom of lifestyle, and freedom of faith on which this great community and nation have been built.

Ms. Kier likes this. It would be nice to affirm this is what we want for our community.

Mr. Pope has no problem with this, but some might. He asked if this would make Claremont a sanctuary city.

Mayor Lovett said the question is, do we want to take a policy position and be a welcoming community. If yes, then the Policy Committee would work on what that might look like and then bring it to the Council to see if that is what the Council wants.

Mr. Stone is concerned the Portsmouth Police Department information would lay the foundation to becoming a sanctuary city.

Mayor Lovett said she forwarded this sample from NHMA as an example. She said this would have to go to the Policy Committee and then to the Council.

Mr. Koloski feels it is a sad state of affairs that we have to have a policy that we are a welcoming community.

Mr. Pope thinks this should go to the Policy Committee.

Mayor Lovett said this is a way to address the community's concern on diversity and inclusion. She asked the Council what steps it would like to take.

Mr. Stone would like to wait until the state establishes their policy. He doesn't see this as a top priority. The Policy Committee is working on a lot of items.

Mayor Lovett thinks, given some occurrences in the community, we need to take a position.

Mr. Damren said there is a lot that has been given to the Policy Committee. He sees no problem with making a motion to take a policy position and being a welcoming community and to refer it to the Policy Committee and let them schedule it in.

Mr. Pope would like the Policy Committee to move forward on this.

Ms. Kier said this is an important priority. This should be in our documents.

Mr. O'Hearne suggested giving this to the Policy Committee and let them make their recommendation to the Council.

Mr. Koloski agreed this is a top priority for this Council to enact prior to a new Council being seated.

Mayor Lovett said in the letter from NHMA, it was suggested Claremont may wish to talk to the Commission for Human Rights. She asked if that is something the Council would like her to look into. Council agreed.

COMMITTEE REPORTS

Mayor Lovett said the Policy Committee is working on a food truck policy. The Spydels, owners of a food truck, have provided input. Ms. Merrill provided an outline of questions that needed to be answered. They are asking for the Planning and Development, and the Parks and Recreation Departments' input at the February 21st meeting. She hopes to bring this policy to the Council in March, in order for it to go into effect by April.

Mr. Damren said the Finance Committee will meet next Tuesday, 6:30 p.m. at the CSB Community Center. They will determine agenda items through June 2019 and will discuss the City's Capital Reserve Fund for blighted properties.

Mr. Pope said earlier this month, the Historic District Commission held a discussion about having a Heritage Commission. This will allow us to look at ways to apply for grants to do some educational projects.

A motion was made by Mr. Damren and seconded by Mr. Koloski that the Council affirm its responsibility and commitment to following Claremont's City Charter and rules of procedure.

Mayor Lovett suggested putting this on the next agenda. Councilors agreed.

Mr. Koloski suggested that it include the Code of Conduct.

Mr. O'Hearne suggested that it read "affirm its responsibility and commitment and shall follow Claremont's City Charter and Council Rules and procedures to include Roberts Rules of Order.

Mr. Pope would like to add "and the Code of Conduct for all boards and commissions, and Council Rules." He said Roberts Rules is generally specified in Council Rules, but if that is going to be included, he suggested changing Council Rules to reflect that. Mr. O'Hearne said he is willing to drop the Roberts Rules portion of his suggestion.

Mr. Damren withdrew his motion and asked to put this on the next agenda for discussion. Ms. Kier seconded the withdrawal.

Voice vote: 7-2 with Messrs. O'Hearne and Koloski voting no.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mr. Pope said the budget season is just getting started and he would like to keep the Interim City Manager through the budget season (at least through July).

Mayor Lovett said she checked the language of Mr. MacLean's contract with MRI and the language states the contract can extend up to 180 days.

Mr. O'Hearne would like to discuss recognizing employees that are retiring.

Mayor Lovett said employee recognition is very important. She would like to know how the Council wants to recognize employees. She's in favor of a standardized process.

Mr. Koloski would like the Council to instruct the City Manager to instruct Human Resources that when any employee is ready to retire, information regarding their achievements will be given to the Council, so the Council can generate something. Ms. Kier said it is important to recognize them.

Mr. Stone agreed there should be a standardized process from the Mayor and Council.

Mr. Koloski would like to be notified of Police pinning ceremonies. Mayor Lovett would like to be notified of Police Academy graduations.

Mr. Damren asked Ms. Walter to bring this concern to Mr. MacLean in order for him to share his experiences (pinning ceremonies for retirements, etc.)

Mayor Lovett said when Mr. MacLean is ready to respond, this can be placed on an agenda, maybe in March.

Ms. Walter suggested there could be standard form to be filled out by Directors.

Mr. Koloski doesn't want to lose sight of new hires, welcoming them aboard. Ms. Walter said that's difficult because we have only one Human Resources person and she put out 280 W-2s this year. This will be hard to manage. Mr. Damren thinks that is why Mr. MacLean should be the one to make the decision.

Mr. O'Hearne thinks retirees should be recognized with a proclamation. Mayor Lovett said when this is on the agenda, Council will discuss how to recognize employees.

Ms. Kier made the following motion:

We have heard a lot recently from citizens and I agree that I do not feel that we have well addressed their concerns. While each of us has individual rights, and I am cautious of infringing on those, I also think it is paramount to our success as a council to encourage trust in ourselves and the city through our actions and words. & I do believe that we should hold ourselves and each other to a higher standard to meet those goals. With that in mind I would recommend that we as a council do what is in our power, which is to issue a public censure of Councilor Stone in reference to his actions and interactions with a resident whose opinions he did not agree with. If we cannot stand for the civility and equality of our citizens then how can we or anyone take us seriously standing for anything else.

The motion was seconded by Mr. Damren.

Mr. O'Hearne suggested putting this motion on an agenda. Mayor Lovett said this could be placed on the next meeting as a follow-on to guidance from legal counsel of what can/cannot be done. Mayor Lovett said she sent the Council a letter of what options there are. This will be placed on the February 27th agenda.

Ms. Kier withdrew her motion and Mr. Damren withdrew his second.

Mr. Stone said he is invoking Council Rule 19. Personal Privileges.

He said the Councilors need to do an independent investigation. He suggested an independent review should be done to determine if there has been interference by the Mayor, because that has been addressed in Council Chambers on numerous occasions. He brought up Ms. Hurley's accusation that someone is being accused of interference during a shooting, which is a Police investigation which is handled by the Attorney General's office.

A motion was made by Mr. Stone that we direct independent legal counsel to investigate the Mayor in regard to interference that has been brought up time and time again since Mr. McNutt's termination. There was no second.

Mr. Stone said private legal counsel would be the best avenue to investigate that impartially.

Mr. O'Hearne said he thinks that motion should be placed on the next agenda.

Mr. Stone said he would like to make a motion that Police Chief Mark Chase be here. Mayor Lovett said no motion is needed, it would be a request.

Mr. O'Hearne said on the next agenda, he would like to discuss Council Rule 23 Setting the Agenda.

Mr. Koloski said regarding the North and Main Street construction project, that he had had a discussion with Commissioner MacLeod before he passed away and Mr. MacLeod's office had no information regarding the Tory Hole. Mr. Koloski would like to identify the area before the construction starts and to mark the area.

Mr. Pope clarified that the Historic District Commission deals with the Historic District, but the Heritage Commission would be the one to look at the Tory Hole. The Heritage Commission could review and make recommendations. If there was a state marker, they may be able to get the information from the state.

Mr. Koloski said under Commissioner MacLeod, they were seeking information, but nothing was found to identify the Tory Hole, so he's asking the community for information.

Mr. Pope suggested Wayne MacElreavy as a person with historical knowledge.

Mr. O'Hearne would like to recognize Firefighter Palmer who died in the line of duty somewhere between 1972 and 1975.

Mr. Koloski would like an agenda item to discuss a simple way to identify businesses that move into the community.

Mayor Lovett said she will send out an email with the list of NHMA training dates and options.

Mayor Lovett talked about having a discussion regarding the conduct of Councilors, not directed to a specific Councilor. What Councilors can/cannot do. There should be a discussion of a standard codifying expectations, both officially and off duty. This would not necessarily be binding, but what would be expected.

Mr. Pope suggested using the teacher code of conduct that was passed last year.

Mayor Lovett suggested all should be a little cautious about their activities. This is the first time she has heard specifically that Councilors interfered in the affairs of the administration. That does not necessarily mean they are true. Tonight, was the first she has heard any specifics. She said she has not had any secret meetings with the Topstone building people.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:48 p.m., a motion was made by Mr. Damren and seconded by Ms. Kier to adjourn.

Voice vote: motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council